

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BLUE CEDAR'S MOTION TO EXCLUDE THE NEW WYNN DECLARATION

Filed November 12, 2025.

Blue Cedar Compliance, Inc. moves under Federal Rules of Civil Procedure 26(a)(1)(A)(i), 26(e)(1), and 37(c)(1) to exclude the declaration of Tessa Wynn filed with Leora Benton's summary-judgment opposition. The requested relief is narrow. Blue Cedar does not seek to exclude Wynn's deposition testimony about her duties, source metrics, calibration score, continuity exception, or retained assignments. Those subjects were disclosed and explored. It seeks to exclude only the newly asserted March 7 conversation linking Benton's employee-relations and EEOC activity to a possible Northline handoff. That subject was first served November 4, after discovery closed, after the supplementation deadline, and after Blue Cedar filed its dispositive motion. Because Benton has not shown substantial justification or harmlessness, the new declaration and that new subject may not be used on the pending motion, at a hearing, or at trial.

Disclosure history and the newly asserted subject

Both sides exchanged initial disclosures on August 15. Each identified Wynn for comparator subjects: her duties, source metrics, calibration score, continuity exception, and assignments retained or received after the RIF. Benton's disclosure affirmatively stated that no additional subject was then identified and promised supplementation if materially different information emerged. Wynn testified on October 2 about those disclosed subjects. She recalled that Voss had asked whether she could take Northline as a possible continuity measure, but she was not asked for, and did not give, any account connecting that question to protected activity. Voss testified on October 7 and denied connecting Benton's complaint to the handoff contingency. Discovery closed October 10. The entered scheduling order required supplementation by October 17 absent leave.

The declaration now recounts materially different words allegedly spoken by Voss after the March 7 calibration session. According to Wynn, Voss referred to an HR and EEOC problem while asking whether Wynn could take Northline if Benton's position were removed. That alleged motive-related conversation is not merely another metric or assignment detail. No disclosure, discovery answer, or deposition answer made that subject known before the cutoff.

Governing disclosure and exclusion standards

Rule 26(a)(1)(A)(i) requires a party to identify not only a person it may use to support a claim, but also the subjects of that person's discoverable information. Rule 26(e)(1) requires timely correction when a disclosure becomes materially incomplete and the new information has not otherwise been made known during discovery or in writing. Rule 37(c)(1) bars use of information or a witness that was not properly disclosed or supplemented unless the failure was substantially justified or harmless. The burden rests with the party that failed to disclose.

Benjamin v. Sparks, 986 F.3d 332 (4th Cir. 2021), applies five considerations to that inquiry: surprise to the opposing party, ability to cure the surprise, disruption of the schedule, the importance of the evidence, and the nondisclosing party's explanation. The first four bear chiefly on harmlessness; the explanation bears chiefly on substantial justification. A court acts within its discretion when it meaningfully evaluates those considerations and tailors the consequence to the nondisclosure. The rule does not require a showing of bad faith. Here, listing Wynn as a comparator did not disclose a separate conversation offered as evidence of retaliatory motive.

Application and requested order

Every consideration except importance favors exclusion. The new account was surprising because the parties' disclosures carefully limited Wynn's subjects and her deposition stayed within those limits. A cure would require more than one short follow-up. Blue Cedar would need to reopen Wynn and Voss, examine the asserted context with Pike and Solis, and search targeted communications after discovery and dispositive briefing had begun. That work would displace the November reply, the December decision schedule, and the January 26 trial setting. The declaration is important to Benton because it supplies motive language absent from the timely record; importance does not erase the resulting surprise.

Benton's counsel knew the new subject by October 15, two days before the supplementation cutoff, but served no subject notice and requested no leave. Waiting for a signed declaration until November 3 does not explain why a timely subject-level correction was impossible. Blue Cedar asks the Court to exclude the declaration and the newly asserted March 7 subject while leaving Wynn's timely disclosed comparator evidence untouched. Blue Cedar relies on Rule 37 and does not ask the Court to decide which witness's recollection is true. Counsel certifies that the parties conferred after the November 4 service and could not resolve the requested use restriction.